

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
TYRELL MACK,

Plaintiff,

-against-

CITY OF NEW YORK, POLICE OFFICER DERRICK
KRECKMANN, TAX REGISTRY NUMBER 954032,
AND SEVERAL UNIDENTIFIED POLICE OFFICERS
ASSIGNED TO POLICE SERVICE AREA 8,

Defendants.
-----X

Index No.:

Date Purchased:

Plaintiff designates Bronx
County as the place of trial.

Basis of venue is place
of occurrence.

SUMMONS

Plaintiff resides at
2991 8th Avenue
New York, New York 10039

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: White Plains, New York
September 9, 2016



TRACIE A. SUNDACK & ASSOCIATES, L.L.C.

Attorneys for Plaintiff

TYRELL MACK

19 Court Street, 3rd Floor

White Plains, New York 10601

(914) 946-8100

Defendant's address:

CITY OF NEW YORK
100 Church Street
New York, New York 10007

POLICE OFFICER DERRICK KRECKMANN,
TAX REGISTRY NUMBER 954032
Police Service Area 8
2794 Randall Avenue
Bronx, New York 10465

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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TYRELL MACK,

Plaintiff,

Index No.:

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CITY OF NEW YORK, POLICE OFFICER DERRICK
KRECKMANN, TAX REGISTRY NUMBER 954032,
AND SEVERAL UNIDENTIFIED POLICE OFFICERS
ASSIGNED TO POLICE SERVICE AREA 8,

VERIFIED COMPLAINT

Defendants.
-----X

Plaintiff TYRELL MACK by and through his attorneys, TRACIE A. SUNDACK & ASSOCIATES, L.L.C., complaining of Defendants CITY OF NEW YORK, POLICE OFFICER DERRICK KRECKMANN, TAX REGISTRY NUMBER 954032, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 8, respectfully alleges as follows:

1. That Plaintiff TYRELL MACK is a black male, a citizen of the United States, and at all relevant times a resident of the City and State of New York.

2. That at all times hereinafter mentioned Defendant CITY OF NEW YORK was and still is a municipal corporation duly organized and existing under and by virtue of the General Municipal Law of the State of New York.

3. That at all times hereinafter mentioned Defendant CITY OF NEW YORK, its agents, servants and/or employees operated, maintained and controlled the New York City Police Department, including all the police officers thereof.

4. That at all times hereinafter mentioned, Defendant POLICE OFFICER DERRICK KRECKMANN, TAX REGISTRY NUMBER 954032, was employed by Defendant CITY OF NEW YORK as a police officer.

5. That at all times hereinafter mentioned, Defendant POLICE OFFICER DERRICK KRECKMANN, TAX REGISTRY NUMBER 954032, acted within the scope of his employment for Defendant CITY OF NEW YORK.

6. That at all times hereinafter mentioned, Defendant POLICE OFFICER DERRICK KRECKMANN, TAX REGISTRY NUMBER 954032, was acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the City and State of New York, and under the authority of his office as a police officer for said city and state.

7. That at all times hereinafter mentioned, Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 8 were employed by Defendant CITY OF NEW YORK as police officers.

8. That at all times hereinafter mentioned, Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 8 acted within the scope of their employment for Defendant CITY OF NEW YORK.

9. That at all times hereinafter mentioned, Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 8 were acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the City and State of New York, and under the authority of their office as police officers for said city and state.

10. That on August 26, 2015, at approximately 11:00 P.M., Plaintiff TYRELL MACK was lawfully on Castle Hill Avenue, between Lacombe Avenue and Norton Avenue, in the County of Bronx, City and State of New York when he was suddenly accosted by members of the New York City Police Department including Defendants POLICE OFFICER DERRICK KRECKMANN, TAX REGISTRY NUMBER 954032, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 8.

11. That on the aforementioned date, time and place, Defendants POLICE OFFICER DERRICK KRECKMANN, TAX REGISTRY NUMBER 954032, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 8 stopped Plaintiff TYRELL MACK and instructed Plaintiff to turn and place his hands against a nearby gate. Plaintiff TYRELL MACK complied. Defendant POLICE OFFICER DERRICK KRECKMANN, TAX REGISTRY NUMBER 954032, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 8 proceeded to search Plaintiff TYRELL MACK, and after the search was completed, instructed Plaintiff to place his hands behind his head. Plaintiff

TYRELL MACK again complied. Defendants POLICE OFFICER DERRICK KRECKMANN, TAX REGISTRY NUMBER 954032, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 8 then, without just cause or provocation, grabbed Plaintiff's left hand by his pinky finger and suddenly and violently yanked the hand downward while twisting it. As a result of this unprovoked assault, Plaintiff TYRELL MACK sustained serious physical injuries including, *inter alia*, a fractured finger.

12. Following the unprovoked and unwarranted assault, Defendants POLICE OFFICER DERRICK KRECKMANN, TAX REGISTRY NUMBER 954032, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 8 handcuffed Plaintiff TYRELL MACK, and placed him under arrest for Assault despite Defendants' knowledge that they lacked reasonable grounds or probable cause to do so.

13. Plaintiff TYRELL MACK was then transported to the 47th Precinct (4111 Laconia Avenue, Bronx, New York 10466) where his arrest was processed. Thereafter, Plaintiff TYRELL MACK was transported to Bronx Central Booking for arraignment. Following arraignment, Plaintiff TYRELL MACK was transported to the Vernon C. Bain Center (1 Halleck Street, Bronx, New York 10474).

14. That Defendants CITY OF NEW YORK, POLICE OFFICER DERRICK KRECKMANN, TAX REGISTRY NUMBER 954032, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 8 initiated criminal proceedings against Plaintiff TYRELL MACK despite Defendants' knowledge that they lacked probable cause to do so.

15. That Plaintiff TYRELL MACK was held, detained and imprisoned from August 26, 2015, to September 1, 2015, by Defendants before being released on his own recognizance.

16. That all criminal charges against Plaintiff TYRELL MACK were dismissed in April, 2016 (Case No.: 2015BX040738 - Bronx Criminal Court).

17. That on or about November 6, 2015, within 90 days of the happening of the complained of incident but more than 30 days prior to the commencement of this action, Plaintiff TYRELL MACK duly presented, served, and filed a Notice of Claim, in writing, upon the Comptroller of Defendant CITY OF NEW YORK, setting forth the name and post office address of claimant and

claimant's attorney; the nature of the claim, the time when, the place where, and the manner in which the claim arose.

18. That more than 30 days have elapsed since service of said Notice of Claim and payment or adjustment thereof has been neglected or refused on behalf of Defendants CITY OF NEW YORK, POLICE OFFICER DERRICK KRECKMANN, TAX REGISTRY NUMBER 954032, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 8

19. That a hearing pursuant to General Municipal Law § 50-h was held on August 17, 2016.

20. This action is commenced within one year and ninety days after the cause of action arose

21. As a result of the foregoing, Plaintiff TYRELL MACK sustained, *inter alia*, physical injuries, emotional distress, embarrassment, humiliation, and deprivation of his constitutional rights.

**AS AND FOR A FIRST CAUSE OF ACTION
UNDER NEW YORK STATE LAW FOR ASSAULT**

22. Plaintiff TYRELL MACK repeats, reiterates and realleges each and every paragraph of this complaint and further alleges:

23. The aforementioned acts of Defendants POLICE OFFICER DERRICK KRECKMANN, TAX REGISTRY NUMBER 954032, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 8, placed Plaintiff TYRELL MACK in apprehension of imminent harmful and offensive bodily contact.

24. As a result of the conduct of Defendants POLICE OFFICER DERRICK KRECKMANN, TAX REGISTRY NUMBER 954032, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 8, Plaintiff TYRELL MACK has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

**AS AND FOR A SECOND CAUSE OF ACTION
UNDER NEW YORK STATE LAW FOR BATTERY**

25. Plaintiff TYRELL MACK repeats, reiterates and realleges each and every paragraph of this complaint and further alleges:

26. Defendants POLICE OFFICER DERRICK KRECKMANN, TAX REGISTRY NUMBER 954032, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO

POLICE SERVICE AREA 8, touched Plaintiff TYRELL MACK in a harmful and offensive manner.

27. Defendants POLICE OFFICER DERRICK KRECKMANN, TAX REGISTRY NUMBER 954032, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 8 did so without privilege or consent from Plaintiff TYRELL MACK.

28. As a result of the conduct of Defendant, Plaintiff TYRELL MACK has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

**AS AND FOR A THIRD CAUSE OF ACTION FOR
EXCESSIVE FORCE UNDER 42 U.S.C. § 1983**

29. Plaintiff TYRELL MACK repeats, reiterates and realleges each and every paragraph of this complaint and further alleges:

30. The level of force employed by Defendants POLICE OFFICER DERRICK KRECKMANN, TAX REGISTRY NUMBER 954032, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 8, was objectively unreasonable and in violation of Plaintiff TYRELL MACK's constitutional rights.

31. As a result of the aforementioned conduct of Defendants POLICE OFFICER DERRICK KRECKMANN, TAX REGISTRY NUMBER 954032, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 8, Plaintiff TYRELL MACK was subjected to excessive force and sustained physical injuries.

**AS AND FOR A FOURTH CAUSE OF ACTION
UNDER NEW YORK STATE LAW FOR FALSE ARREST**

32. Plaintiff TYRELL MACK repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

33. Defendants POLICE OFFICER DERRICK KRECKMANN, TAX REGISTRY NUMBER 954032, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 8, arrested Plaintiff TYRELL MACK in the absence of probable cause and without a warrant.

34. As a result of the aforesaid conduct by Defendants POLICE OFFICER DERRICK KRECKMANN, TAX REGISTRY NUMBER 954032, and SEVERAL UNIDENTIFIED POLICE

OFFICERS ASSIGNED TO POLICE SERVICE AREA 8, Plaintiff TYRELL MACK was subjected to an illegal, improper and false arrest by the Defendants and taken into custody and cause to be falsely imprisoned, detained, confined, incarcerated and prosecuted by the Defendants in criminal proceedings.

35. The aforesaid actions by the Defendants constituted a deprivation of Plaintiff TYRELL MACK's rights.

**AS AND FOR A FIFTH CAUSE OF ACTION
UNDER NEW YORK STATE LAW FOR FALSE IMPRISONMENT**

36. Plaintiff TYRELL MACK repeats, reiterates, and realleges each and every paragraph of this complaint and further allege:

37. As a result of the foregoing, Plaintiff TYRELL MACK was falsely imprisoned, his liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints.

38. Plaintiff TYRELL MACK was conscious of said confinement and did not consent to same.

39. The confinement of Plaintiff TYRELL MACK was without probable cause and was not otherwise privileged.

40. As a result of the aforementioned conduct, Plaintiff TYRELL MACK has suffered physical and mental injury, together with embarrassment, humiliation, shock, fright and loss of freedom.

**AS AND FOR A SIXTH CAUSE OF ACTION
FOR FALSE ARREST UNDER 42 U.S.C. § 1983**

41. Plaintiff TYRELL MACK repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

42. That at the aforementioned time and place, Defendants POLICE OFFICER DERRICK KRECKMANN, TAX REGISTRY NUMBER 954032, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 8, placed Plaintiff TYRELL MACK under arrest, despite Defendants' knowledge that they lacked probable cause to do so.

43. That Plaintiff TYRELL MACK had not committed any offense and Defendants POLICE

OFFICER DERRICK KRECKMANN, TAX REGISTRY NUMBER 954032, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 8, did not have reasonable grounds or probable cause to believe that Plaintiff had committed any offense.

44. That Defendants POLICE OFFICER DERRICK KRECKMANN, TAX REGISTRY NUMBER 954032, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 8 were aware that probable cause did not exist for the arrest and detention of Plaintiff TYRELL MACK and that said arrest and detention was illegal, without justification or excuse, and without authority of law, and the Defendants acted with malicious intent to arrest, oppress, and injure Plaintiff TYRELL MACK and such actions were committed in bad faith.

45. That, in all of the wrongful acts above alleged, Defendants POLICE OFFICER DERRICK KRECKMANN, TAX REGISTRY NUMBER 954032, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 8, acted without reasonable or probable cause and with malicious intent to arrest, oppress, and injure Plaintiff TYRELL MACK and such actions were committed in bad faith.

46. As a direct and proximate result of the above-described unlawful and malicious acts of Defendants POLICE OFFICER DERRICK KRECKMANN, TAX REGISTRY NUMBER 954032, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 8, all committed under color of their authority as a police officer, and while acting in that capacity, Plaintiff TYRELL MACK was deprived of the rights and immunities secured to him under the Constitutions and laws of the United States and of the State of New York, in particular the First, Fourth, Fifth, Eighth and Fourteenth Amendments thereof, and 42 U.S.C. §§ 1981, 1983, and 1985 (2) and (3), his liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

47. As a further result of the above-described acts, Plaintiff TYRELL MACK was deprived of the rights and immunities secured to him under the Constitution and laws of the United States

and of the State of New York.

AS AND FOR A SEVENTH CAUSE OF ACTION
FOR FALSE IMPRISONMENT UNDER 42 U.S.C. § 1983

48. Plaintiff TYRELL MACK repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

49. That Plaintiff TYRELL MACK was falsely imprisoned from August 26, 2015 until September 1, 2015, by Defendant CITY OF NEW YORK, its agents, servants, and employees, including but not limited to Defendants POLICE OFFICER DERRICK KRECKMANN, TAX REGISTRY NUMBER 954032, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 8, who procured and/or effected said false imprisonment knowing their actions to be wrongful and malicious and without any basis.

50. That Defendant CITY OF NEW YORK by and through its agents, servants, and employees, including but not limited to, Defendants POLICE OFFICER DERRICK KRECKMANN, TAX REGISTRY NUMBER 954032, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 8, intended to confine Plaintiff TYRELL MACK, and Plaintiff TYRELL MACK was conscious of the confinement, and Plaintiff TYRELL MACK did not consent to the confinement.

51. That Defendants' words, actions, and the charges laid by them were willful, malicious, false, wrongful, without reason or basis and without probable cause and committed in bad faith and solely for the purpose of falsely imprisoning Plaintiff TYRELL MACK and damaging Plaintiff TYRELL MACK in his reputation and depriving him of his liberty.

52. That as a direct and proximate result of the above-described unlawful and malicious acts of Defendants POLICE OFFICER DERRICK KRECKMANN, TAX REGISTRY NUMBER 954032, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 8, all committed under color of their authority as police officers for Defendant CITY OF NEW YORK, and while acting in that capacity, Plaintiff TYRELL MACK suffered damage, all of which is in violation of his rights under the Constitution and laws of the United States and of the State of New York.

AS AND FOR A EIGHTH CAUSE OF ACTION
FOR MUNICIPAL LIABILITY

53. Plaintiff TYRELL MACK repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

54. That Defendants POLICE OFFICER DERRICK KRECKMANN, TAX REGISTRY NUMBER 954032, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 8, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/ authority, which is forbidden by the Constitution of the United States.

55. That the aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department included, but were not limited to, wrongfully detaining minority males based on racial profiling and making unlawful arrests in order to satisfy an arrest quota.

56. That the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well- being and constitutional rights of Plaintiff TYRELL MACK.

57. That the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by Plaintiff TYRELL MACK as alleged herein.

58. That the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by Plaintiff TYRELL MACK as alleged herein.

61. That Defendants POLICE OFFICER DERRICK KRECKMANN, TAX REGISTRY NUMBER 954032, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 8 , while acting under the color of state law, were directly and actively involved in violating Plaintiff TYRELL MACK' constitutional rights.

62. That all of the foregoing acts by Defendant CITY OF NEW YORK, its agents, servants

and/or employees including Defendants POLICE OFFICER DERRICK KRECKMANN, TAX REGISTRY NUMBER 954032, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 8, deprived Plaintiff TYRELL MACK of federally protected rights including, but not limited to, the right:

- A. To be free from seizure and arrest not based on probable cause;
- B. To be free from unlawful search;
- C. To be free from unwarranted and malicious criminal prosecution;
- D. To be free from excessive force; and
- E. To receive equal protection under the law.

**AS AND FOR A NINTH CAUSE OF ACTION FOR
NEGLIGENT HIRING AND RETENTION**

63. Plaintiff TYRELL MACK repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

64. That Defendant CITY OF NEW YORK was careless and reckless in hiring and retaining as and for its employee Defendants POLICE OFFICER DERRICK KRECKMANN, TAX REGISTRY NUMBER 954032, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 8, in that said Defendant employees lacked the experience, deportment and ability to be employed by Defendant CITY OF NEW YORK; in that Defendant CITY OF NEW YORK failed to exercise due care and caution in its hiring practices, and in particular, in hiring the Defendant employees who lacked the mental capacity and the ability to function as an employee of Defendant CITY OF NEW YORK; in that the defendant employees lacked the maturity, sensibility and intelligence to be employed by Defendant CITY OF NEW YORK; in that Defendant CITY OF NEW YORK knew of the lack of ability, experience, deportment and maturity of said defendant employees when they hired them to be employees; and, in that Defendant CITY OF NEW YORK, its agents, servants and/or employees were otherwise careless, negligent and reckless.

65. Defendant CITY OF NEW YORK knew, or should have known in the exercise of reasonable care, the propensities of Defendants POLICE OFFICER DERRICK KRECKMANN,

TAX REGISTRY NUMBER 954032, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 8, to engage in the wrongful conduct heretofore alleged in this Complaint.

**AS AND FOR A TENTH CAUSE OF ACTION FOR
NEGLIGENT TRAINING AND SUPERVISION**

66. Plaintiff TYRELL MACK repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

67. The failure of Defendant CITY OF NEW YORK to adequately train, supervise, discipline or in any way control the behavior of Defendants POLICE OFFICER DERRICK KRECKMANN, TAX REGISTRY NUMBER 954032, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 8 in the exercise of their employment functions, and the failure to enforce the laws of the State of New York and the regulations of Defendant CITY OF NEW YORK is evidence of the reckless lack of cautious regard for the rights of the public including Plaintiff TYRELL MACK. Further, the Defendants exhibited a lack of that degree of due care which prudent and reasonable individuals would show.

68. The failure of Defendant CITY OF NEW YORK to train, supervise, discipline or in any other way control Defendants POLICE OFFICER DERRICK KRECKMANN, TAX REGISTRY NUMBER 954032, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 8, in the exercise of his employment functions and the failure to enforce the laws of the State of New York and the regulations of Defendant CITY OF NEW YORK, was carried out willfully, wantonly, maliciously and with such reckless disregard for the consequences as to display a conscious disregard for the dangers of harm and injury to the citizens of New York, including Plaintiff TYRELL MACK.

**AS AND FOR A ELEVENTH CAUSE OF ACTION FOR
RESPONDEAT SUPERIOR LIABILITY**

69. Plaintiff TYRELL MACK repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

70. Defendant CITY OF NEW YORK is vicariously liable for the acts of its employees and

agents who were on duty and acting in the scope of their employment when they engaged in the wrongful conduct described herein.

71. As a result of the foregoing, Plaintiff TYRELL MACK is entitled to compensatory damages in the sum of One Million Dollars (\$1,000,000.00) and is further entitled to punitive damages in the sum of Two Million Dollars (\$2,000,000.00)

WHEREFORE Plaintiff TYRELL MACK demands judgment against Defendants CITY OF NEW YORK, POLICE OFFICER DERRICK KRECKMANN, TAX REGISTRY NUMBER 954032, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 8 , jointly and severally, in the amount of One Million Dollars (\$1,000,000.00) in compensatory damages and Two Million Dollars (\$2,000,000.00) in punitive damages, plus reasonable attorney's fees, costs and disbursements of this action.

Dated: White Plains, New York
September 9, 2016



TRACIE A. SUNDACK & ASSOCIATES, L.L.C.

Attorneys for Plaintiff

TYRELL MACK

19 Court Street, 3rd Floor

White Plains, New York 10601

(914) 946-8100

ATTORNEY'S VERIFICATION

STATE OF NEW YORK)
) SS.:
COUNTY OF WESTCHESTER)

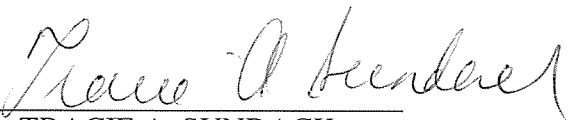
I, the undersigned, an attorney admitted to practice in the Courts of the State of New York,
state:

That I am the attorney of record for the Plaintiff in the within action.

That I have read the foregoing SUMMONS and COMPLAINT and know the contents
thereof; the same is true to my own knowledge, except for the matters therein alleged to be on
information and belief, and as to those matters I believe them to be true. The reason this
Verification is made by me and not by the Plaintiff is that Plaintiff resides outside the County where
your affirment maintains her office. The grounds of my belief as to all matters not stated upon my
own knowledge are as follows: files maintained by my office and conversations with Plaintiff.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: White Plains, New York
September 9, 2016



TRACIE A. SUNDACK